



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: UDC-22-00064 / Interior Heights, 4th Filing Zone Change
Date: April 11, 2022

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 4/11/2022
- Public Services Committee 4/19/2022
- Second reading 4/25/2022
- Public Services Committee 5/3/2022
- Third and final reading 5/9/2022

Planning Commission Recommendation:

The Planning Commission heard this item at their April 4, 2022 meeting and recommended the Governing Body approve this application by a unanimous vote.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM AN AGRICULTURAL RESIDENTIAL TO HARMONY VALLEY PLANNED UNIT DEVELOPMENT (ORDINANCE #4274) FOR LAND LOCATED NORTH OF WEST COLLEGE DRIVE AND EAST OF YORK AVENUE.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on April 4, 2022, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as: Lot 1, Block 1, Interior Heights, 4th Filing, City of Cheyenne, Laramie County, Wyoming, is hereby changed to Harmony Valley Planned Unit Development (Ordinance #4274).

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

APRIL 4, 2022

STAFF REPORT

FILE: UDC-22-00064: Lot 1, Block 1, Interior Heights, 4th Filing Zone Change

REQUEST: A request to rezone approximately 20 Acres of land from AR Agricultural Residential to PUD Planned Unit Development.

LOCATION: North of W College Drive and East of York Avenue.

AGENT: Kelly Hafner, CivilWorkx, LLC

OWNER: Tru Grit Land Development, LLC

ZONING: AR Agricultural Residential

FUTURE LAND USE: Mixed-use Residential

PURPOSE: To bring the parcel into the existing Harmony Valley PUD

PREPARED BY: Connor White, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lot 1, Block 1, Interior Heights, 4th Filing to the existing Harmony Valley PUD as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne
- Harmony Valley PUD

BACKGROUND:

This zone change application proposes changing the zoning from AR Agricultural Residential to the existing Harmony Valley PUD. The land is currently developed with a single-family home. The purpose of the proposed zone change is to allow for future residential redevelopment under the Harmony Valley PUD.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Residential	AR (Agricultural Residential)	Single-family Residential
North	Urban Residential	PUD (Planned Unit Development)	Vacant
South	Public and Quasi-Public	MUB (Mixed-use Business) / CB (Community Business)	School
East	Urban Residential	PUD	Single-family Residential
West	Mixed-use Residential	PUD	Single-family Residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, infrastructure is coming to this area with the development of Harmony Valley.

The Future Land Use designation for this property is Mixed-use Residential. The Mixed-Use Residential category promotes self-supporting neighborhoods that primarily contain housing. A range of residential housing types, such as single-family residences, duplexes, patio homes, townhomes, apartments, condominiums, and live-work units, should be built on a majority of any site within this category.

The proposed development is residential and meets the land use designation.

The proposed zone change **complies** with this review criterion.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

The Harmony Valley PUD surrounds a majority of this property, and the property was anticipated to be part of the PUD when the PUD was approved.

The proposed zone change for the subject property **complies** with this review criterion.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

When the Harmony Valley PUD was approved, this lot was called out as "Parcel A" and was anticipated to be a part of the PUD at a later date. The current zone of AR would allow for residential on larger lots. The PUD would allow the lot to be replatted into smaller single-family lots.

The proposed zone change **complies** with this review criterion.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The proposed zone change to the existing Harmony Valley PUD would allow the property to develop based on the requirements of the PUD and the requirements of Article 4 to allow for additional residential development similar to what already exists within Harmony Valley.

The proposed zone change for the subject property **complies** with this review criterion.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

This lot was anticipated by the original Harmony Valley PUD and was called out within the PUD as "Parcel A". The proposed development is residential as anticipated by the PUD.

The proposed zone change for the subject property **complies** with this review criterion.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The proposed development is residential. Residential development was anticipated by the Harmony Valley PUD and this parcel would be able to meet the standards of the PUD.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No major concerns were raised by other reviewing bodies.

The proposed zone change for the subject property **complies** with this review criterion.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process no comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The Harmony Valley PUD anticipated this parcel becoming part of the PUD and laid out the framework to zone it into the PUD at a later date.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant.
2. Recommend approval of the zoning amendment subject to conditions or modifications (**Staff Recommendation**).
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

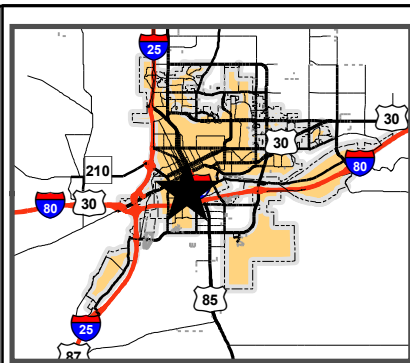
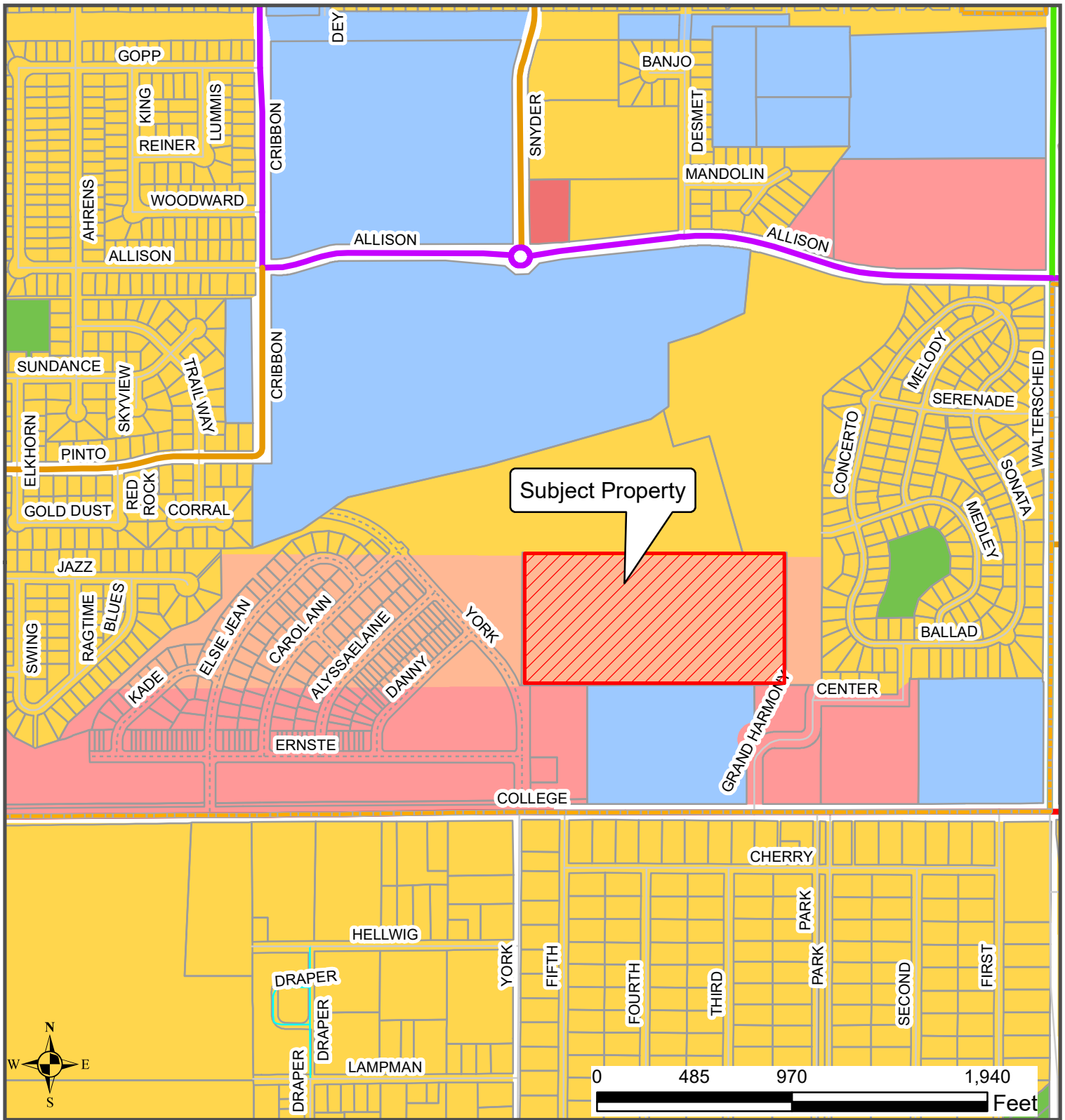
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from AR to PUD.

ATTACHMENTS:

1. Current Zoning Map
2. (Current) Future Land Use Map
3. Zone Change Map

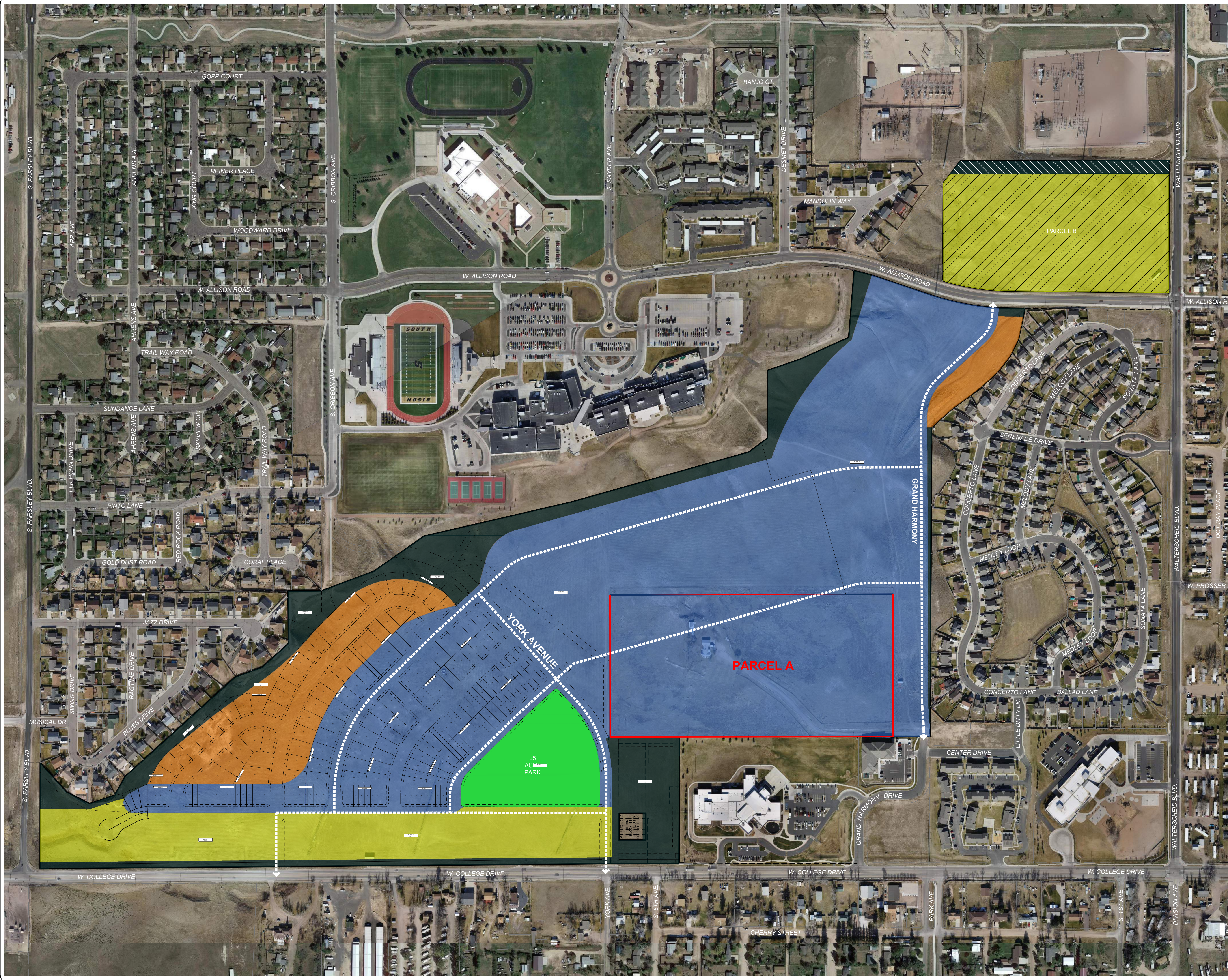


Attachment 2: Land Use Map UDC-22-00064

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



LEGEND

- OPEN SPACE
- PARK
- LOW DENSITY RESIDENTIAL
- MEDIUM DENSITY RESIDENTIAL
- HIGH DENSITY RESIDENTIAL
- POTENTIAL FUTURE MEDIUM DENSITY
- POTENTIAL FUTURE HIGH DENSITY
- POTENTIAL FUTURE OPEN SPACE

EXISTING CONDITIONS ANALYSIS

LOCATION	LANDUSE	ZONING
SITE	VACANT	A-1 & CB
NW	RESIDENTIAL	MR
N	HIGH SCHOOL	P
NE	DETENTION & VACANT	P & A-1
E	RESIDENTIAL	PUD
SE	RESIDENTIAL & MIXED USE, SCHOOL	AR, MUB, HR, CB
S	RESIDENTIAL	MR (COUNTY)
MIXED USE, COMMERCIAL		MU (COUNTY)
VACANT		CB (COUNTY)
SW	VACANT	PUD (COUNTY)
W	RESERVOIR	A-1 (COUNTY)
	VACANT	LI (COUNTY)

CONCEPTUAL DEVELOPMENT PLAN

PROPOSED LAND-USE	AREA/UNITS
LOW DENSITY RESIDENTIAL	10-20 Ac. +/- 40-80 UNITS +/-
MEDIUM DENSITY RESIDENTIAL	60-65 Ac. +/- 350-600 UNITS +/-
HIGH DENSITY RESIDENTIAL w/ MIXED USE	10-15 Ac. +/- 250-350 UNITS +/-
PARK	5+ Ac. +/-
OPEN SPACE	8-15 Ac. +/-
PARCEL A	20 Ac. +/- 80-200 UNITS +/-
PARCEL B - HDR	10-13 Ac. +/- 150-200 UNITS +/-
PARCEL B - OPEN SPACE	1-4 Ac. +/-

FINAL PROJECT AREA AND DENSITIES SUBJECT TO CHANGE.

PROJECT GOALS & OBJECTIVES

THE PROJECT GOAL IS TO DEVELOP A VIBRANT NEW RESIDENTIAL NEIGHBORHOOD CONTAINING A WIDE VARIETY OF RESIDENTIAL HOUSING TYPES, RECREATIONAL AREAS, AND COMMERCIAL OPPORTUNITIES WHILE OFFERING AN AFFORDABILITY COMPONENT NEEDED FOR EXISTING AND NEW RESIDENTS OF OUR COMMUNITY.

THE PROJECT DEVELOPMENT PLAN CALLS FOR RESIDENTIAL DEVELOPMENT WITH VARYING DENSITIES. THE PROJECT INCLUDES LOW DENSITY, MEDIUM DENSITY AND HIGH-DENSITY DEVELOPMENT DISTRICTS AS OUTLINED WITHIN THE PUD. THE LOWER DENSITY DEVELOPMENT DISTRICTS ARE LOCATED, IN GENERAL, FOLLOWING THE RIDGELINE ON THE NORTHERN PROPERTY BOUNDARY. THE MEDIUM DENSITY DISTRICT IS GENERALLY THROUGHOUT THE CENTRAL CORE OF THE PROJECT. THE HIGHER DENSITY RESIDENTIAL DISTRICTS ARE LOCATED ADJACENT TO WEST COLLEGE DRIVE. THE PARK IS LOCATED WITHIN THE INITIAL PHASE OF THE PROJECT NEAR THE CENTRAL CORE OF THE RESIDENTIAL AREA WITH GOOD ACCESS TO AND FROM THE RESIDENTIAL AREAS. THE OPEN SPACE IS ALONG THE PERIMETER AREAS WHERE THE TOPOGRAPHY IS STEEP.

THE PUD OUTLINED, WITHIN THIS DOCUMENT, WAS DEVELOPED AROUND THE COMPREHENSIVE PLAN WHICH OUTLINES THE INTENT FOR MIXED USE ALONG WEST COLLEGE DRIVE AND TRANSITIONING TO URBAN RESIDENTIAL. THE PUD ALLOWS FOR MIXED USE ALONG WEST COLLEGE DRIVE. THE REMAINING AREAS ARE URBAN RESIDENTIAL OF VARYING DENSITIES AGAIN, FOLLOWING THE COMPREHENSIVE PLAN.

IN GENERAL, THE PROPOSED PUD UTILIZES THE EXISTING REGULATORY AND DEVELOPMENT REVIEW PROCESSES WITHIN THE CITY OF CHEYENNE'S UNIFIED DEVELOPMENT CODE. THE INTENT IS TO OUTLINE, IN DETAIL, THE DESIGN OBJECTIVES IN BOTH VISUAL AND NARRATIVE FORMAT TO STREAMLINE FUTURE DEVELOPMENT REVIEWS NECESSARY TO CONSTRUCT THE PROJECT.

NOTE

THE USES AND ROAD LAYOUT SHOWN ON THIS MAP ARE SCHEMATIC ONLY. THE USES AND LAYOUT WILL BE FURTHER DEFINED THROUGH THE PLATTING PROCESS.

SCALE: 1" = 200'

VERTICAL: 1" = N/A
HORIZONTAL: 1" = 200'

SCALE: 1" = 200'

4025 Automation Way
Suite B2
Fort Collins, CO 80525
(970) 698-6046
CivilWorxeng.com

HARMONY VALLEY

PARCEL 'A' PLANNED UNIT DEVELOPMENT

LAND USE MAP

DATE SUBMITTED: 03/02/2022

PREPARED FOR: TRU GRIT

PROJECT STATUS

SHEET NUMBER
PUD2
OF 4 SHEETS

SCALE
VERTICAL: 1" = N/A
HORIZONTAL: 1" = 200'

JOB NUMBER
C21011

CAUTION
The engineer preparing these plans will not be responsible for or liable for, unauthorized changes to or uses of these plans. The user of these plans is advised that the user must be approved by the preparer of these plans.